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IN THE UNITED STATES DISTRICT COURT
FOR THE TERRITORY OF GUAM

UNITED STATES OF AMERICA, Plaintiff, vs. JEIDA GUAM, Defendant.	Case No. 26-CV-00028 **COMPLAINT**

Plaintiff, United States of America, on behalf of the United States Department of Labor, Occupational Safety and Health Administration (OSHA), files its Complaint to collect civil money penalties (CMPs) against Defendant, Jeida Guam, individually and in any other name under which the company conducts business in this judicial district.

INTRODUCTION

1. The purpose of this civil action is to collect delinquent debts accruing to $82,813.56 including interest as of August 18, 2026, arising from CMPs imposed by OSHA on Defendant for violations of the Occupational Health and Safety Act of 1970, 29 U.S.C. § 651, et seq. (hereinafter, the "Act") and OSHA regulations at 29 C.F.R. Part 1926.

JURISDICTION AND VENUE

2. This action arises under the Federal Debt Collections Procedures Act ("FDCPA"),

28 U.S.C. § 3001, et seq. This Court has jurisdiction under 28 U.S.C. §§ 1345 and 1355 and 29 U.S.C. § 666(l).

3. Venue is proper in this judicial district, pursuant to 28 U.S.C. §1391(b), for the reason that Defendant's principal office is located in Tamuning, Guam, Defendant is doing business in this judicial district, and the actions complained of herein were taken by Defendant in this judicial district. Defendant can be served at its principal place of business located at: P.O. Box 11535, Tamuning, Guam 96931.

PARTIES

4. Plaintiff is the United States of America in its own right and on behalf of OSHA, which at all times relevant hereto, was an agency of the United States responsible for the enforcement of the Act.

5. Defendant Jeida Guam, owned by Dominador S. Vergara, Jr., has transacted business within this judicial district, including the conduct forming the basis for the CMPs sought to be enforced in this action. Upon information and belief, at all times material to this civil action, Defendant operated under its own legal name.

COUNT I
OSHA Inspection Number 1612202
Inspection Date: August 4, 2022

6. On August 4, 2022, OSHA officials conducted a safety inspection at Jose Ayuyu House, Punzalan Street, Lot 2066-REW-4NEW, located in Barrigada, Guam, where Defendant was conducting business.

7. On August 31, 2022, OSHA issued Citations and Notifications of Penalty and a Debt Collection Notice to Defendant regarding Inspection No. 1612202. OSHA Citation dated August 31, 2022, attached as Exhibit 1. OSHA officials issued citations with monetary penalties for violations of the Act including:

a. *Citation 1, Item 1:* A repeat serious violation of 29 C.F.R. § 1926.501(b)(1) where employees were not protected from fall hazards. Ex. 1 at OSHA-0008.

b. *Citation 1, Item 2:* A repeat serious violation of 29 C.F.R. § 1926.701(b) where all protruding rebar was not guarded to protect employees from impalement hazards. Ex. 1 at OSHA-0009.

8. On or about November 14, 2022, OSHA issued a collection letter to Defendant that the payment of penalties associated with Inspection No. 1612202 were outstanding and immediate payment of $28,209.48 was due. OSHA Demand Letter attached as Exhibit 2.

9. On December 21, 2022, OSHA's Delinquent Accounts and Collection Service issued a letter to Defendant that its debt had been referred for further action and that additional enforcement actions may be pursued. An unsigned copy of the December 21, 2022, collection letter is attached as Exhibit 3.

10. On March 28, 2023, defendant paid $2,000.00 towards his penalties. Pertinent parts of Claims Collection Litigation Report (CCLR) for Citation No. 1612202 are attached as Exhibit 4; Ex. 4 at OSHA-0020.

11. Defendant has not paid any other amount, except the $2,000, from the CMPs assessed for this citation although demand has been duly made. OSHA claims that $33,099.01 remains outstanding as of August 18, 2026. Ex. 4 at OSHA-0016.

COUNT II
OSHA Inspection Number 1609746
Inspection Date: July 22, 2022

12. On July 22, 2022, OSHA officials conducted a safety inspection at the SandCastle, 1199 Pale San Vitores, located in Tamuning, Guam, where Defendant was conducting business.

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13. On September 23, 2022, OSHA issued Citations and Notifications of Penalty and a Debt Collection Notice to Defendant regarding Inspection Number 1609746. OSHA Citation dated September 23, 2022, attached as Exhibit 5. OSHA officials issued citations with monetary penalties for violations of the Act including:

a. *Citation 1, Item 1:* A serious violation of 29 C.F.R. § 1926.403(b)(2) where extension cords were connected in series exposing employees to electrical and fire hazards. Ex. 5 at OSHA-0029.

b. *Citation 1, Item 2:* A serious violation of 29 C.F.R. § 1926.451(b)(1)(i) where scaffolding was not fully planked on all levels exposing employees to fall hazards. Ex. 5 at OSHA-0030.

c. *Citation 2, Item 1:* A repeat serious violation of 29 C.F.R. § 1926.701(b) where all protruding rebar was not guarded to protect employees from impalement hazards. Ex. 5 at OSHA-0031.

14. On or about November 23, 2022, OSHA issued a collection letter to Defendant that payment of penalties associated with Inspection No. 1609746 were outstanding and immediate payment of $31,528.24 was due. OSHA Demand Letter attached as Exhibit 6.

15. On December 29, 2022, OSHA's Delinquent Accounts and Collection Service issued a letter to Defendant that its debt had been referred for further action and that additional enforcement actions may be pursued. An unsigned copy of the December 29, 2022, collection letter is attached as Exhibit 7.

16. Defendant has not paid any amount of the CMPs assessed for this citation although demand has been duly made. OSHA claims that $39,814.89 remains outstanding as of August 18, 2026. Pertinent parts of CCLR for Citation No. 1609746 are attached as Exhibit 8; Ex. 8 at OSHA-0039.

COUNT III
OSHA Inspection Number 1631255
Inspection Date: October 27, 2022

17. On October 27, 2022, OSHA officials conducted a safety inspection at the SandCastle, 1199 Pale San Vitores, located in Tamuning, Guam, where Defendant was conducting business.

18. On March 8, 2023, OSHA issued Citations and Notifications of Penalty and a Debt Collection Notice to Defendant regarding Inspection Number 1631255. OSHA Citation dated March 8, 2023, attached as Exhibit 9. OSHA officials issued citations with monetary penalties for violations of the Act including:

a. *Citation 1, Item 1:* A serious violation of 29 C.F.R. § 1926.405(b)(2) where a pull box was missing a cover exposing employees to electrical hazards. Ex. 9 at OSHA-0052.

b. *Citation 2, Item 1:* A repeat serious violation of 29 C.F.R. § 1926.403(b)(2) where extension cords were connected in series exposing employees to electrical and fire hazards. Ex. 9 at OSHA-0053.

19. On or about May 24, 2023, OSHA issued a collection letter to Defendant that payment of penalties associated with Inspection No. 1631255 were outstanding and immediate payment of $8,051.70 was due. OSHA Demand Letter attached as Exhibit 10.

20. On June 28, 2023, OSHA's Delinquent Accounts and Collection Service issued a letter to Defendant that its debt had been referred for further action and that additional enforcement actions may be pursued. An unsigned copy of the June 28, 2023, collection letter is attached as Exhibit 11.

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21. Defendant has not paid any amount of the CMPs assessed for this citation although demand has been duly made. OSHA claims that $9,899.66 remains outstanding as of August 18, 2026. Pertinent parts of CCLR for Citation No. 1631255 are attached as Exhibit 12; Ex. 12 at OSHA-0061.

PRAYER FOR RELIEF

A Certificate of Indebtedness has been issued by OSHA certifying that the total amount due is $82,813.56 including interest at the annual rate of 7% as of August 18, 2026. Certificate of Indebtedness is attached as Exhibit 13.

WHEREFORE, the United States demands judgment against Defendant, Jeida Guam, in the principal amount of $65,703.00 plus accrued interest to August 18, 2026, in the amount of $17,110.56 and interest thereafter to the date of judgment at the rate of 7.0 percent per annum, and interest from the date of judgment at the legal rate until paid in full; together with advances, costs and expenses under 28 U.S.C. § 2412(a)(2) and 28 U.S.C. § 1914(a), fees and a surcharge of 10.0 percent of the total debt pursuant to 28 U.S.C. § 3011; and for such other and further relief this Court deems just and proper.

RESPECTFULLY SUBMITTED this 11th day of September, 2026.

SHAWN N. ANDERSON
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Districts of Guam and the NMI

By: */s/ Mikel W. Schwab*
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